

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 25, 2026
8:30 a.m.

4. DUSTIN NUNNERY V. SUZANA NUNNERY

25FL0486

This matter is before the court for: (1) a Trial Setting Conference, as requested by the Petitioner on January 29, 2026; and (2) hearing on the Request for Order (RFO) filed by the Respondent on February 11, 2026, regarding property control (residence located at 857 Mule Deer Circle, South Lake Tahoe, California).

Trial Setting Conference

The issues to be addressed at trial include: child custody, as well as child and spousal support.

RFO Re: Property Control

Proof of service filed March 17, 2026, shows the RFO (but not the court's Notice of Tentative Ruling) was electronically served upon the Petitioner's attorney on February 13, 2026.

To date, the Petitioner has filed no Responsive Declaration. It is unclear to the court whether the Petitioner does not oppose the RFO or takes the position that the issue should be deferred to the time of trial.

The RFO being properly before the court and good cause appearing, the court's tentative ruling is to grant the RFO.

TENTATIVE RULING #4:

TRIAL SETTING CONFERENCE: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, MARCH 25, 2026, IN DEPARTMENT 12 TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.

RFO RE: PROPERTY CONTROL: THE COURT TENTATIVELY GRANTS THE RFO. BECAUSE THERE IS NO PROOF OF SERVICE FOR THE COURT'S NOTICE OF TENTATIVE RULING IN THE COURT'S FILE, THE COURT WILL NOT LIMIT THE PARTIES' ABILITY TO PRESENT ORAL ARGUMENT UNDER LOCAL COURT RULE 8.05.07 (GENERALLY REQUIRING A TIMELY ORAL ARGUMENT REQUEST, AS WELL AS NOTICE UPON THE OTHER PARTY, ON THE DAY THE TENTATIVE RULING IS ISSUED).

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MARCH 25, 2026
8:30 a.m.

5. JEFFREY O'NEIL V. MELISSA PEREIRA

SFL20170221

This matter is on calendar for review following the hearing on October 15, 2025, related to the Petitioner's Request for Order (filed July 17, 2025) to modify child custody and visitation. The court ordered counsel for the parties' child, JP (age 9) to submit a report on or before March 11, 2026; and ordered the parties to file any supplemental declarations on or before March 18, 2026.¹

On March 10, 2026, Minor's Counsel submitted a minor's counsel report, which was electronically served upon both parties that same day, according to the proofs of service, one filed March 10, 2026, and the other filed March 11, 2026.

Counsel for the Respondent filed two separate supplemental declarations. The first supplemental declaration was timely filed on March 18, 2026; however, there is no proof of service. The second supplemental declaration was untimely filed on March 19, 2026. Due to the noted defects, the court does not consider either of these supplemental declarations.

On March 19, 2026, the Petitioner filed an untimely supplemental declaration. Therefore, the court does not consider it.

The court intends to adopt the recommendation of Minor's Counsel for the reasons set forth in Minor's Counsel's report and leave all existing orders in effect because they are in the best interests of the parties' child.

TENTATIVE RULING #5: THE COURT INTENDS TO ADOPT THE RECOMMENDATION OF MINOR'S COUNSEL FOR THE REASONS SET FORTH IN MINOR'S COUNSEL'S REPORT AND LEAVE ALL EXISTING ORDERS IN EFFECT BECAUSE THEY ARE IN THE BEST INTERESTS OF THE PARTIES' CHILD.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

¹ Although these deadlines are not expressly stated in the court's October 15, 2025, minute order, the court did review the audio recording of the October 15, 2025, hearing and confirms that it adopted "Bullet Points Number 6 and 7" of the tentative ruling. Bullet Point Number 7 states: "A report from Minor's counsel is to be filed no later than March 11, 2025 [sic], and Supplemental Declarations from the parties are to be filed and served no later than March 18, 2025 [sic]." The court made a hand-written correction to the March 18 deadline on the tentative ruling, indicating that supplemental declarations were due March 18, 2026.